

**CHAPTER cxii.**

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Dursley Gas Hayfield Gas High Wycombe Gas Amersham Beaconsfield and District Water and Elham Valley Water. [31st July 1914.] A.D. 1914.

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Vict.
c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas and Water Orders Confirmation (No. 1) Act 1914. Short title.

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirmation
of Orders in
schedule.

A.D. 1914.

SCHEDULE.

LIST OF ORDERS.

DURSLEY GAS.—Order empowering the Dursley Gas Light and Coke Company Limited to construct additional gasworks to raise additional capital and for other purposes.

HAYFIELD GAS.—Order empowering the Hayfield Gas Company Limited to acquire additional lands to construct additional gasworks to raise additional capital and for other purposes.

HIGH WYCOMBE GAS.—Order authorising the High Wycombe Gas Light and Coke Company Limited to construct additional gasworks in the borough of Chepping Wycombe otherwise High Wycombe in the county of Buckingham.

AMERSHAM BEACONSFIELD AND DISTRICT WATER.—Order empowering the Amersham Beaconsfield and District Waterworks Company Limited to construct new works to raise additional capital and for other purposes.

ELHAM VALLEY WATER.—Order empowering the Elham Valley Water Company Limited to extend their limits of supply to acquire additional lands to construct and maintain additional waterworks and to raise additional capital.

DURSLEY GAS.

A.D. 1914.

Order empowering the Dursley Gas Light and Coke Company Limited to construct additional Gasworks to raise additional Capital and for other purposes.

*Dursley.**Preliminary.*

1. This Order may be cited as the Dursley Gas Order 1914 and the Dursley Gas Order 1888 (in this Order referred to as "the Order of 1888") and this Order may be cited together as the Dursley Gas Orders 1888 and 1914. Short titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commencement of Order.

3. The provisions of the Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) and the Gasworks Clauses Act 1871 are incorporated with this Order (except where expressly varied by the Order of 1888 or this Order) and form part of this Order For the purpose of its incorporation with the Order of 1888 and this Order section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section and section 35 of that Act shall be read as if "the special purposes fund" were referred to instead of "the insurance fund." Incorporation of Acts.

4. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction And in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall mean the undertaking authorised by the Order of 1888 and this Order. Interpretation.

Undertakers.

5. The Dursley Gas Light and Coke Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers." Undertakers

A.D. 1914.

*New Capital.**Dursley.*
New capital.

6. The limitation prescribed by the Order of 1888 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the new capital") not exceeding thirteen thousand pounds including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order. Provided that the share capital of the Undertakers for the purposes of the undertaking shall not exceed in the whole twenty thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

New shares
or stock to
be sold by
auction or
tender.

7.—(1) All shares or stock forming part of the new capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine. Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk of the rural district council of Dursley and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(B) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

A.D. 1914.

Dursley.

(4) Any shares or stock which have been offered for sale in accordance with the foregoing provisions of this Order and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

8. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application of premium arising on sale of shares or stock.

9. Except as by section 27 of the Order of 1888 expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividends on the new capital than seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and five pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

Limits of dividend on new capital.

10. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the

Dividends on different classes of shares or stock to be paid rateably.

A.D. 1914. existing capital and the new capital a proportionate reduction shall be made in the dividend of each such class.
Dursley.

Limit of
borrowing
powers.

11. Notwithstanding anything contained in section 16 (Limit of borrowing powers) of the Order of 1888 the Undertakers may borrow on mortgage of the undertaking any sum of money not exceeding one-third of the amount of the capital of the Undertakers for the purposes of the undertaking at the time actually raised by the issue of shares or stock including any premium that may have been or may be obtained on the sale of any shares or stock under the provisions of the Order of 1888 or this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Construction of Additional Gasworks and Manufacture and Sale of Gas and Residual Products.

Undertakers
may con-
struct gas-
works on
lands de-
scribed in
schedule.

12. The Undertakers may on the lands described in the schedule to this Order annexed so long as they are possessed of the same erect maintain alter improve extend and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits within which they are authorised to supply gas and may on the said lands convert and manufacture residual products resulting from the manufacture of gas.

Power to
create a
special pur-
poses fund.

13.—(1) The directors of the Undertakers may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other.

A.D. 1914.

Dursley.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The money or securities standing to the credit of the insurance fund of the Undertakers at the commencement of this Order shall be credited to the special purposes fund.

(7) The Undertakers may transfer to the credit of the special purposes fund a sum not exceeding five hundred and sixty-eight pounds out of the amount standing on the thirtieth day of June one thousand nine hundred and thirteen to the credit of the profit and loss account which was carried forward to the next account.

(8) Section 17 of the Order of 1888 is hereby repealed.

14. After the thirtieth day of June one thousand nine hundred and seventeen it shall not be lawful for the Undertakers at any time to permit a sum of money in excess of an amount equal to the sum which the Undertakers might have lawfully distributed as dividend in respect of the year then last completed to be carried forward to the credit of the undertaking for the next following year.

Limiting
amount to
be carried
forward.

15. The Undertakers may transfer to the credit of the reserve fund a sum not exceeding five hundred and eighty-two pounds out of the amount standing on the thirtieth day of June one thousand nine hundred and thirteen to the credit of the profit and loss account which was carried forward to the next account.

Transfer to
reserve fund

Costs of Order.

16. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers Provided always that it shall be lawful for the Undertakers to apply to the payment of the said costs charges and expenses a sum of not exceeding four hundred pounds out of the amount standing on the thirtieth day of June one thousand nine hundred and thirteen to the credit of the profit and loss account which was carried forward to the next account.

Costs of
Order.

A.D. 1914.

The SCHEDULE referred to in the foregoing Order.

Dursley.

GAS LANDS.

A piece of land containing 1 rood 25 perches or thereabouts situate in the parish of Dursley in the rural district of Dursley in the county of Gloucester belonging or reputed to belong to the Undertakers and bounded on the north by the works of the Undertakers on the east by the Midland Railway and on the south and west by lands belonging or reputed to belong to Sir Robert Ashton Lister the said piece of land comprising the inclosure numbered 318 in the said parish on the $\frac{1}{2500}$ scale Ordnance map (2nd edition 1903) Gloucestershire sheet XLVIII.-15.

HAYFIELD GAS.*Hayfield.*

Order empowering the Hayfield Gas Company Limited to acquire additional Lands to construct additional Gasworks to raise additional Capital and for other purposes.

*Preliminary.*Short and
collective
titles.

1. This Order may be cited as the Hayfield Gas Order 1914 and the Hayfield Gas Order 1909 (in this Order referred to as "the Order of 1909") and this Order may be cited together as the Hayfield Gas Orders 1909 and 1914.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorporation
of Acts.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order (except where the same are expressly varied by this Order) Provided that for the purpose of its incorporation with the Order of 1909 and this Order section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section.

4. In this Order the expression "the prescribed rates" means the rates of dividend authorised by the Order of 1909 and this Order on the capital of the Undertakers and the several words terms and expressions to which by any Act in whole or in part incorporated with this Order or by the Gas and Water Works Facilities Act 1870 or by the Order of 1909 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction.

A.D. 1914.

Hayfield.
Interpreta-
tion.*Undertakers.*

5. The Hayfield Gas Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

Additional Capital.

6. The limitation prescribed by the Order of 1909 with respect to the amount of the share capital of the Undertakers for the purposes of their undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the additional capital") not exceeding six thousand pounds including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order Provided that the share capital of the Undertakers for the purposes of their undertaking shall not exceed in the whole eleven thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Additional
capital.

7. All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of section 8 of the Order of 1909 and the provisions of that section shall apply to any such issue as fully and effectually as if they were set out in this Order.

Application of
section 8 of
Order of 1909
as to additional
capital being
sold by auction
or tender.

8. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application
of premium
arising on
issue of
shares or
stock.

9. The Undertakers shall not in any year declare out of their profits any larger dividend on the additional capital than seven pounds in respect of every one hundred pounds actually paid up of such capital

Limits of
dividend on
capital.

A.D. 1914.

Hayfield.

as may be issued as ordinary capital and five pounds in respect of every one hundred pounds actually paid up of such additional capital as shall be issued as preference capital.

Restriction
on making
up deficien-
cies in divi-
dends of pre-
vious years.

10. Unless and until the Board of Trade shall under the powers of section 26 of the Order of 1909 make an order giving a standard price with sliding scale as to profits the Undertakers may make up the deficiency of any previous dividend upon the ordinary share capital in any year within five years of the payment of such deficient dividend.

Dividends
on different
classes of
shares or
stock to be
paid propor-
tionately.

11. In case in any year or in any half year when a half-yearly dividend is declared the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the dividend at the prescribed rates on each class of ordinary shares or stock in the capital authorised by the Order of 1909 and the additional capital a proportionate reduction shall be made in the dividend of each such class.

Limit of
borrowing
powers.

12. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-third of the amount of the capital of the Undertakers at the time actually raised by the issue of shares or stock including any premiums that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

Purchase of Lands.

Power to
purchase
additional
lands.

13. The Undertakers may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands which they are authorised to hold under the Order of 1909 and the lands described in the schedule to this Order annexed any lands which they may require Provided that they shall not at any time hold for such purposes more than five acres of land in the whole in addition to the lands which they are authorised to hold under the Order of 1909 and the lands described in the schedule to this Order annexed and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products except the lands described in the schedule to the Order of 1909 and in the schedule to this Order annexed.

Power to
erect cot-
tages &c. for
officers and
servants.

14. The Undertakers may on any land for the time being belonging to or leased by them erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of their undertaking.

Lands for Construction of additional Gasworks.

A.D. 1914.

15. The Undertakers notwithstanding anything in the Order of 1909 contained may on the lands described in the schedule to this Order annexed erect maintain alter extend improve and renew additional gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may on the said lands convert and manufacture residual products resulting from the manufacture of gas.

Hayfield.

Undertakers may construct gasworks on lands described in schedule.

Price of Gas.

16. As from the first quarter-day after the commencement of this Order section 26 of the Order of 1909 shall be amended by the substitution of the words "four shillings and threepence" for the words "four shillings and sixpence" where the same occur in the said section and that section shall be read and construed accordingly.

Price of gas. Amendment of section 26 of Order of 1909.

Miscellaneous.

17. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to construction and placing of pipes &c. between mains and meters.

- (A) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Undertakers' mains and the meter so far as such pipes and fittings are intended to be covered over:
- (B) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (C) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers:
- (D) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building:
- (E) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the

A.D. 1914.

Hayfield.

expiration of twenty-four hours from the service of such notice on the Undertakers Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with :

- (F) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Costs of
Order.

18. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

The SCHEDULE referred to in the foregoing Order.

GAS LANDS.

1. A piece or parcel of leasehold land and the two dwelling-houses (formerly one dwelling-house) and the slaughter-house and other buildings erected thereon belonging or reputed to belong to the surviving trustee of John Waterhouse deceased and his mortgagee and now contracted to be sold to the Undertakers containing by admeasurement two hundred and sixty-four square yards or thereabouts situate in the parish of Hayfield in the county of Derby bounded on the north by land belonging or reputed to belong to Daniel Clifton and Company Limited on the south by land belonging or reputed to belong to John Taylor on the east by land and buildings belonging or reputed to belong to the surviving trustee of John Waterhouse deceased and his mortgagee and secondly herein-after described and on the west by a road or way leading from Hayfield to Ridge 'Top.

2. A piece or parcel of leasehold land and the three dwelling-houses and other buildings erected thereon belonging or reputed to belong to the surviving trustee of John Waterhouse deceased and his mortgagee and now contracted to be sold to the Undertakers containing

by admeasurement one thousand one hundred and thirty-two square yards or thereabouts situate in the parish of Hayfield aforesaid bounded on the north partly by a street or road leading from Hayfield to New Mills and known as Fishers Lane and partly by the land thirdly herein-after described on the south by land and buildings belonging or reputed to belong to the Undertakers and to John Taylor respectively on the east by land belonging or reputed to belong to the surviving trustee of John Waterhouse deceased and his mortgagee and thirdly herein-after described and on the west partly by the land and buildings firstly herein-before described and partly by land belonging or reputed to belong to Daniel Clifton and Company Limited.

A.D. 1914.

Hayfield.

3. A piece or parcel of leasehold land and the building erected thereon belonging or reputed to belong to the surviving trustee of John Waterhouse deceased and his mortgagee and now contracted to be sold to the Undertakers containing by admeasurement one thousand one hundred and ninety-eight square yards or thereabouts situate in the parish of Hayfield aforesaid bounded on the north by Fishers Lane aforesaid on the south partly by land belonging or reputed to belong to the Undertakers and partly by the land and buildings secondly herein-before described on the east by land belonging or reputed to belong to the trustees of Francis John Sumner deceased and on the west by the land and buildings secondly herein-before described.

HIGH WYCOMBE GAS.

Order authorising the High Wycombe Gas Light and Coke Company Limited to construct additional Gasworks in the Borough of Chepping Wycombe otherwise High Wycombe in the County of Buckingham.

*High
Wycombe.*

1. This Order may be cited as the High Wycombe Gas Order 1914 and the High Wycombe Gas Order 1882 (in this Order referred to as "the Order of 1882") the High Wycombe Gas Order 1901 (in this Order referred to as "the Order of 1901") and this Order may be cited together as the High Wycombe Gas Orders 1882 to 1914.

Short titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commence-
ment of
Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the

Incorporation of Acts.

A.D. 1914. undertaking) of the Gasworks Clauses Act 1847 and of the Gasworks
High Clauses Act 1871 are hereby incorporated with this Order except where
Wycombe. the same are expressly varied by the Order of 1882 the Order of 1901
or this Order.

Interpreta- 4. The several words terms and expressions to which by the Acts
tion. in whole or in part incorporated with this Order and by the Gas and
Water Works Facilities Act 1870 meanings are assigned have in this
Order the same respective meanings.

Undertakers. 5. The High Wycombe Gas Light and Coke Company Limited shall
be the Undertakers for the purposes of this Order and are in this
Order referred to as "the Undertakers."

Purchase of 6. The Undertakers may from time to time for the purposes of their
additional lands. undertaking purchase take and hold (by agreement but not otherwise)
for the purposes of the Order of 1882 the Order of 1901 or this
Order such lands as they may require in addition to the lands which
they are authorised to hold under the Order of 1882 and the lands
described in the schedule to this Order annexed Provided that they
shall not at any time hold for such purposes more than five acres in
addition to the lands which they are authorised to hold under the
Order of 1882 and the lands described in the schedule to this Order
annexed and that the Undertakers shall not create or permit a nuisance
on any such lands and that no lands shall be used by the Undertakers
for the purposes of manufacturing gas or residual products or of
storing gas except the lands described in the schedule to the Order
of 1882 or in the schedule to this Order annexed.

Construction 7. The Undertakers notwithstanding anything in the Order of 1882
of additional gasworks. contained may on the lands and premises described in the schedule to
this Order annexed so long as they are in possession of the same erect
maintain alter improve extend and renew additional gasworks with
all necessary machinery and apparatus and do all such acts as may
be proper for making and storing gas and for supplying gas within
the limits of supply and may on the said lands convert and manu-
facture residual products resulting from the manufacture of gas and
they may also construct and maintain alter enlarge and renew or
discontinue on the said lands houses offices buildings and other works
connected with their undertaking.

Costs of 8. All the costs charges and expenses of and incidental to the
Order. applying for preparing obtaining and confirming this Order and
otherwise in relation thereto shall be paid by the Undertakers.

The SCHEDULE referred to in the foregoing Order.

A.D. 1914.

GAS LANDS.

High
Wycombe.

Firstly—A piece of land belonging to or reputed to belong to the Marquis of Lincolnshire situate in Newland in the parish of High Wycombe and within the municipal borough of Chepping Wycombe in the county of Buckingham and containing by admeasurement one acre and bounded on or towards the north in part by a narrow strip of land belonging or reputed to belong to the Marquis of Lincolnshire and intended to be thrown into and used for the purpose of widening a public footpath separating the said piece of land from the present gasworks of the Undertakers and in other part and also on or towards the south by land belonging or reputed to belong to the said Marquis of Lincolnshire on or towards the east by a road or way leading to Loakes House and on or towards the west by a road or way leading to the barracks.

Secondly—Seven messuages cottages or tenements belonging to or reputed to belong to the Undertakers with the outbuildings gardens and appurtenances thereto belonging situate in Newland in the borough of Chepping Wycombe aforesaid bounded on or towards the north by the street there known as Desborough Road on or towards the south and east by the road or footway there and on or towards the west by the present gasworks of the Undertakers.

AMERSHAM BEACONSFIELD AND DISTRICT WATER.

*Order empowering the Amersham Beaconsfield and District
Waterworks Company Limited to construct new Works
to raise additional Capital and for other purposes.*

Amersham,
Beaconsfield
and District.

Preliminary.

1. This Order may be cited as the Amersham Beaconsfield and District Water Order 1914 and the Amersham Beaconsfield and District Water Order 1896 (in this Order referred to as "the Order of 1896") the Amersham Beaconsfield and District Water Order 1903 (in this Order referred to as "the Order of 1903") the Amersham Beaconsfield and District Water Act 1904 (in this Order referred to as "the Act of 1904") and this Order may be cited together as the Amersham Beaconsfield and District Water Orders and Act 1896 to 1914.

Short and
collective
titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commence-
ment of
Order

A.D. 1914.
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Amersham
Beaconsfield
and District.
Incorporation of Acts.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Waterworks Clauses Acts 1847 and 1863 are (except where expressly varied by this Order) incorporated with and form part of this Order.

For the purposes of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "Company" shall mean the Undertakers.

Interpretation.

4. The several words and expressions to which by any Act incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings. In this Order the expressions "deposited plans" and "deposited sections" mean respectively the plans and sections deposited for the purposes of this Order.

Undertakers.

5. The Amersham Beaconsfield and District Waterworks Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Construction of Waterworks.

Confirmation of existing works.

6. The construction by the Undertakers of the existing works or portions of works in this section described together with all incidental and ancillary works and apparatus connected therewith is hereby sanctioned and confirmed notwithstanding that part of the lands upon which the same have been constructed is not shown upon the plans deposited for the purposes of the Order of 1896 and the Undertakers may so long as they are possessed of the lands upon which the same are constructed or so long as they may be entitled to do so use and maintain and alter enlarge deepen and extend such works or any of them as if the same had been authorised by and constructed pursuant to the provisions of the Order of 1896 and may retain and hold for the purposes of their undertaking the lands which have been acquired by the Undertakers for the purposes of such works. The said works are situate in the county of Buckingham and are as follows:—

The extension of the pumping station works and buildings authorised by the Order of 1896 which has been constructed upon land forming part of the field or inclosure numbered 406 on the $\frac{25}{100}$ Ordnance map of the county of Buckingham sheet No. XLIII. 5 (1898 second edition) and the wells bores pipes and other works apparatus and conveniences situate in the said inclosure.

Power to construct new works.

7. The Undertakers may on the lands shown on the deposited plans so long as they are possessed of the said lands or so long as they may be entitled to do so under agreement make and maintain

in the lines and according to the levels shown on the deposited plans and deposited sections the following works in the county of Buckingham:—

A.D. 1914.

Amersham
Beaconsfield
and District.

- (1) A service reservoir situate in the parish of Amersham upon lands forming parts of the fields or inclosures numbered 359 and 361 on the $\frac{1}{2500}$ Ordnance map of the county of Buckingham sheet No. XLIII. 9 (1898 second edition):
- (2) A conduit consisting of one or more line or lines of pipes situate in the parish of Amersham commencing at or in the service reservoir herein-before described and terminating by a junction with the existing main of the Undertakers in the road leading from Amersham to Beaconsfield:

Together with all such pipes mains culverts drains channels sluices valves bores adits headings water-towers filters tanks banks walls embankments pumps engines machinery and other works as may be necessary or convenient in connexion with or subsidiary to the said works.

8. In constructing the works authorised by this Order the Undertakers may deviate laterally to any extent within the limits of deviation shown on the deposited plans but in no case beyond the width of any road shown on the deposited plans and they may deviate vertically from the levels shown on the deposited sections to any extent not exceeding three feet upwards and ten feet downwards.

Limits of
deviation.

9. The works authorised by this Order shall be commenced constructed and completed within the time and subject to the conditions prescribed by section 11 of the Gas and Water Works Facilities Act 1870 Provided that subject to the restrictions and provisions of this Order the Undertakers may alter enlarge extend and renew such works in such way and manner as may be requisite or advisable for supplying water within the limits for the supply of water by the Undertakers.

Limit of time
for construc-
tion of works.

10. The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Order or Act of Parliament.

Limiting
powers of
abstracting
water.

11. Subject to the provisions of the Waterworks Clauses Act 1847 the Undertakers may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Undertakers and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose stop up break up and interfere temporarily

Detection of
waste.

A.D. 1914. with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus
Amersham Provided that the Undertakers shall not interfere with any electric
Beaconsfield lines wires and apparatus belonging to or used by the Postmaster-
and District. General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Power to lay pipes in streets not dedicated to public use. 12. The Undertakers may but only with the consent in writing of the owner of the soil of such street on the application of the owner or occupier of any premises within the limits abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if the street were a street within the meaning of those Acts.

Additional Capital.

Additional capital. 13. Notwithstanding the limitation prescribed by section 9 of the Order of 1903 with respect to the amount of share capital of the Undertakers the share capital of the Undertakers for the purposes of their undertaking authorised by the Order of 1896 the Order of 1903 the Act of 1904 and this Order may consist of the share capital of forty-six thousand pounds mentioned in the said section 9 of the Order of 1903 and of further share capital consisting of shares or stock (in this Order referred to as "the additional capital") not exceeding in the whole thirty-four thousand pounds including any premiums which may be obtained on the sale of any shares under the provisions of this Order Provided that the share capital of the Undertakers for the purposes of their undertaking shall not exceed in the whole eighty thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Additional capital to be sold by auction or tender. 14.—(1) All shares or stock forming part of the additional capital shall be issued in accordance with the provisions of this section.
 (2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk to the district council of every district within the limits for the supply of water by the Undertakers and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive

weeks in one or more local newspapers circulating within the said limits : A.D. 1914.

Amersham
Beaconsfield
and District.

(B) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :

(C) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :

(D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of the ordinary and preference shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportion as the directors of the Undertakers may think fit or to one or more of these classes of persons only Provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with the provisions of subsection (2) or of subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount

A.D. 1914.

*Amersham
Beaconsfield
and District.*

obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

Application
of moneys.

15. All moneys raised under this Order including any premiums shall be applied to the purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or of stock under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limits of
dividend on
additional
capital.

16. The Undertakers shall not in any year declare or make out of their profits any larger dividend on the additional capital than seven pounds in respect of every one hundred pounds actually paid up of so much of such capital as may be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of seven pounds per centum per annum or than five pounds in respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as preference capital.

Limit of
borrowing
powers.

17. The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-third of the amount of the capital of the Undertakers actually raised by the issue of shares or stock and no higher rate of interest than five pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

*Supply.*As to pres-
sure.

18. Section 18 of the Order of 1896 is hereby repealed and in lieu thereof the following provisions shall be in force and have effect:—

The water supplied by the Undertakers need not at any time be delivered at a greater height than can be reached by gravitation from the service reservoir or works authorised by the Order of 1896 Provided always that from and after the completion of the service reservoir by this Order authorised this section shall be read and have effect as if the words “the service reservoir from which the supply is given” were substituted for the words “the service reservoir or works authorised by the Order of 1896.”

Supply of
water by
hose-pipe to
stables &c.

19. When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept the Undertakers may if a hose-pipe or other similar apparatus is used charge

such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

A.D. 1914.

*Amersham
Beaconsfield
and District.*

20. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rates payable by owners of certain houses.

21.—(1) The Undertakers shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Supply to houses partly used for trade &c.

(2) Where a supply of water to a farmhouse is used for farming purposes the Undertakers may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Undertakers to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

22. The Undertakers may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Power to sell meters &c.

The provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Undertakers to let for hire any water fittings and other apparatus to any person supplied by them with water.

23.—(1) The Undertakers may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Undertakers in providing such materials and executing such work shall be paid by the person requiring the same.

Power to supply fittings.

(2) Any fittings let for hire by the Undertakers shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings have upon them respectively

A.D. 1914. a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Amersham
Beaconsfield
and District.

Power to re-
move meters
and fittings.

24. The Undertakers by their agents or workmen after forty-eight hours' notice in writing under the hand of the secretary or some other officer of the Undertakers to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Undertakers is laid or fixed and through or in which the supply of water is from any cause other than the default of the Undertakers discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal.

Notice of dis-
continuance.

25. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers or be given by the consumer personally at the office of the Undertakers.

Notice to
Undertakers
of connecting
or discon-
necting
meters.

26. Before any person connects or disconnects any meter by means of which any of the water of the Undertakers is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Undertakers of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Undertakers and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Undertakers
not bound to
supply several
houses by one
pipe.

27. The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and may if they think fit at any time require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Maintenance
of common
pipe.

28. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Undertakers in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Undertakers.

29. For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

A.D. 1914.

*Amersham
Beaconsfield
and District.*As to com-
munication
pipes.

30. If it should appear to the Undertakers that by reason of any injury to or defect in any communication pipe which the Undertakers are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Undertakers to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Undertakers in executing such repairs shall be recoverable by the Undertakers from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier. Provided that except in case of emergency the Undertakers shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

Power to
Undertakers
to repair
communica-
tion pipes.

31. If a person requiring a supply of water from the Undertakers has previously quitted premises at which water was supplied to him by the Undertakers without paying to them all water rates and other moneys due from him to the Undertakers they may refuse to furnish to him a supply of water until he pay the same.

Power to
refuse supply
to persons in
debt for other
premises.*Miscellaneous.*

32.—(1) For the purpose of constructing enlarging extending repairing cleansing emptying or examining any of their waterworks the Undertakers may cause the water in such works to be temporarily discharged into any available stream or watercourse.

Temporary
discharge of
water into
streams.

(2) In the exercise of the power conferred by this section the Undertakers shall do as little damage as may be and shall make compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

33. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
Order.

A.D. 1914.

ELHAM VALLEY WATER.

Elham Valley.

Order empowering the Elham Valley Water Company Limited to extend their limits of supply to acquire additional Lands to construct and maintain additional Waterworks and to raise additional Capital.

Short titles.

1. This Order may be cited as the Elham Valley Water Order 1914 and the Elham Valley Water Order 1904 (in this Order referred to as "the Order of 1904") and the Elham Valley Water Order 1912 (in this Order referred to as "the Order of 1912") may be cited together with this Order as the Elham Valley Water Orders 1904 to 1914.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorporation of Acts.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Waterworks Clauses Acts 1847 and 1863 are (except where the same are expressly varied by this Order) hereby incorporated with and form part of this Order.

Interpreta-
tion.

4. The several words and expressions to which by any Act wholly or partly incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings.

Undertakers.

Undertakers.

5. The Elham Valley Water Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

*Extension of Limits of Supply.*Extension of
limits of
supply.

6. The Undertakers shall have and may exercise within the following new limits (in this Order referred to as "the new limits") namely the parishes and places of Monks Horton Sellindge (otherwise Sellinge) and Lympne which parishes and places are within the rural district of Elham and the detached portion No. 3 of the parish of Aldington in the rural district of East Ashford (detached No. 1) in the county of Kent all the like powers privileges and authorities for or in relation to the supply of water and be subject to all the like duties liabilities and obligations in respect thereof as they now have and are subject to within the limits of the Order of 1904 and the area

defined in the Order of 1904 as the limits of supply together with the new limits is in this Order referred to as "the limits of supply."

A.D. 1914.
Elham Valley.

7. If at any time after the expiration of five years from the commencement of this Order the Undertakers are not furnishing a sufficient supply of water in accordance with the provisions of the said Order of 1904 and this Order in any part of the district of any local authority included within the new limits the local authority having jurisdiction within such part of the said district may provide such supply in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in such part of the said district as if in either case there were no company authorised by this Order to supply water therein.

Where Undertakers not furnishing sufficient supply local authority or company may supply.

If any difference shall arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

Lands.

8. The Undertakers may (by agreement but not otherwise) purchase take and hold any lands and any easements rights or privileges (not being easements rights or privileges to take water in which persons other than the grantors have an interest) in over or affecting any lands which they may require for the purposes of the undertaking Provided always that they shall not create or permit a nuisance on any lands held by them and that they shall not at any time hold for such purposes more than five acres of land in addition to the land which they have acquired or have power to acquire under the Order of 1904 Provided also that no building shall be erected on such lands except such as are required for the purposes of the undertaking.

Power to acquire additional lands.

9. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of the said Acts grant to the Undertakers any easement right or privilege (not being an easement of water) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants or to such easements rights or privileges as aforesaid.

Persons under disability may grant easements &c. to Undertakers.

Construction of Waterworks.

10. The Undertakers may on the lands herein-after described and in the positions shown on the plans and sections deposited in respect of this Order so long as they are possessed of the said lands or so

Powers to construct waterworks and supply water.

A.D. 1914. long as they may be entitled to do so under agreement make and
Elham Valley. maintain in the lines and according to the levels shown on the plans
 and sections deposited as aforesaid the works herein-after described
 and other works and conveniences connected therewith and may enlarge
 renew and improve the same The works authorised by this Order
 will be wholly situate within the county of Kent and are as follows:—

Work No. 1.—A reservoir to be situate upon land belonging to
 the Undertakers in the parish of Lyminge in the rural district
 of Elham and situated in a field numbered 321 on the third
 edition one thousand nine hundred and seven of the 25¹00
 Ordnance map of that parish:

Work No. 2.—A conduit or line or lines of pipes commencing at
 the existing pumping station of the Undertakers situated upon
 land in the parish of Lyminge aforesaid and forming part of
 the field numbered 314 on the third edition one thousand nine
 hundred and seven of the 25¹00 Ordnance map of that parish
 and terminating at the reservoir before described:

Work No. 3.—A conduit or line or lines of pipes commencing at
 the reservoir before described as Work No. 1 and terminating
 in the main road leading from Folkestone to Canterbury at the
 north-west corner of Fullers Wood in the parish of Monks
 Horton:

Together with all necessary cuts adits culverts drains sluices wells
 bore-holes tanks embankments dams filter beds main pipes apparatus
 approaches works appliances and conveniences in connexion with the
 said works.

Limits of
 deviation

11. In constructing the works authorised by this Order the
 Undertakers may deviate laterally to any extent within the limits of
 deviation shown on the deposited plan and the Undertakers may
 deviate vertically from the level shown on the deposited section to
 any extent not exceeding three feet upwards or seven feet downwards
 Provided that the Undertakers shall not raise any aqueduct or pipe
 above the surface of the ground unless so shown in the section and
 then only to the extent shown.

Discharge of
 water into
 streams.

12.—(1) For the purpose of constructing repairing cleansing
 emptying or examining any reservoir well adit conduit line or lines
 of pipes or other works authorised to be constructed and maintained
 the Undertakers may cause the water in any such work to be temporarily
 discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the
 Undertakers shall do as little damage as may be and shall make
 compensation to all persons for all damage sustained by them by the
 exercise of such power the amount of compensation to be settled in

default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889. A.D. 1914.

Elham Valley.

13. For the purpose of laying pipes for supplying water within the limits of supply the Undertakers may but only with the consent in writing of the local authority liable to repair the said streets or roads in so much of any streets or roads in the county of Kent outside the limits of supply as the Undertakers shall require to break up for the purpose aforesaid exercise all rights powers and authorities conferred by the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and the said provisions shall apply to so much of the said streets or roads as aforesaid as if the same were within the limits of supply. Provided always that in any case in which such consent has been refused and the Board of Trade are of opinion that the consent of the local authority should be dispensed with having regard to all the circumstances of the case they may by writing addressed to the Undertakers signed by an assistant secretary of the said Board dispense with the same accordingly.

Power to lay mains in streets outside for purposes of supply within water limits.

14. The Undertakers may but only with the consent of the owner of the soil of such street on the application of the owner or the occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if the streets were streets within the meaning of those Acts.

Power to lay pipes in private roads.

15. For the purpose of complying with any obligation under the Order of 1904 the Order of 1912 and this Order to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

As to breaking up ground for laying communication pipes.

16. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rates payable by owners of small houses.

17. The works authorised by this Order shall be commenced constructed and completed within the time and subject to the conditions prescribed by section 11 of the Gas and Water Works Facilities

Period for completion of works.

A.D. 1914. Act 1870 Provided always that subject to the provisions and restrictions of this Order the Undertakers may alter enlarge deepen and extend their tanks wells main pipes filters filter beds and other works in such ways and manner as may be requisite or advisable for supplying water within the limits of supply.

For pro-
tection of
Kent County
Council.

18. In executing the works and exercising the powers authorised by this Order so far as they affect any road which may now or hereafter be or become a main road (herein-after in this section referred to as "any main road") or any county or main road bridge (which expression shall in this section include the road over such bridge and the approaches thereto and any culvert) in the county of Kent the following provisions for the county council of the administrative county of Kent (in this section referred to as "the county council") shall unless otherwise agreed in writing apply and have effect (that is to say):—

- (1) All main pipes and works of the Undertakers to be laid in or along any main road or in or upon or across any county or main road bridge shall be laid in such position in or at the side thereof and at such depth not exceeding three feet as the county council in writing under the hand of their surveyor (herein-after in this section referred to as "the county surveyor") may direct:
- (2) In the application of the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the notice required by section 30 of that Act shall in the case of any county or main road bridge be fourteen days instead of three days and in all other cases seven days instead of three days:
- (3) The plan required by section 31 of the Waterworks Clauses Act 1847 shall be accompanied by a description of the proposed works and shall be delivered to the county council or the county surveyor by the Undertakers not less than in the case of any county or main road bridge twenty-one days and in all other cases fourteen days before the Undertakers commence to interfere with any such county or main road bridge or open or break up any main road for the purpose of executing the works and any difference as to any such plan or description or as to the temporary or other works referred to in the said section 31 shall be determined by arbitration under this section instead of in the manner prescribed by the said section 31:
- (4) The surplus paving metalling or materials removed during the laying renewal or repair of the mains pipes and works of

the Undertakers shall not be placed on the metalled portion of any main road or in or upon any county or main road bridge without the written consent of the county surveyor and subject to such conditions and directions as he may reasonably require or give : A.D. 1914.
Elham Valley.

- (5) All surplus paving metalling or materials removed during the laying of the mains pipes or works on any main road or in upon or across any county or main road bridge and not required by the Undertakers for the purpose of reinstating and making good the said road or bridge may be used by the county council for the maintenance and repair of any main or other road and the Undertakers shall on receiving notice from the county surveyor forthwith remove the same to such place or places not more than one mile from the place of excavation as the county surveyor may direct and if the Undertakers fail to do so the county surveyor may remove the same at the expense of the Undertakers :
- (6) If the Undertakers in the execution of any works in or affecting any main road or county or main road bridge shall cause any damage injury or disturbance thereto and shall neglect or refuse to make good all such damage injury or disturbance to the reasonable satisfaction of the county council then it shall be lawful for the county council after reasonable notice to the Undertakers of the alleged neglect or refusal and of the works they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Undertakers shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence :
- (7) Nothing in this Order shall authorise the Undertakers to interfere with the structural part of any county or main road bridge without the consent in writing of the county surveyor which may be given upon such conditions as the county council or the county surveyor may reasonably determine :
- (8) Nothing in this Order contained shall prejudice or affect the right of the county council at any time or times to divert widen alter the levels of or otherwise alter and improve any main road and to remove alter rebuild widen or repair any county or main road or bridge in under or over or

A.D. 1914.

Elham Valley.

attached to which any mains pipes or works of the Undertakers are carried in the same manner as the county council might have diverted improved or removed altered rebuilt widened or repaired any such main road or county or main road bridge if this Order had not been granted and such mains pipes and works had not been constructed or laid in under over or attached to such main road or bridge respectively and the county council shall not make any compensation to the Undertakers for any expense or loss to which the Undertakers may be put by reason or in consequence of any such diversion improvement removal alteration rebuilding widening or reparation And in the event of any such main road or bridge in under over or attached to which any such mains pipes or other works are laid being diverted improved removed altered rebuilt widened or repaired as aforesaid in such manner as to require the removal or alteration of any such mains pipes or works the Undertakers shall at their own cost in all things as and when requested by the county surveyor remove or alter the position of the said mains pipes and works and the works by which the same are carried in under over or attached to any such main road or bridge as aforesaid and replace the same to the satisfaction of the county surveyor Provided that during any such diversion improvement removal alteration rebuilding widening or reparation of such main road or bridge as aforesaid the county council shall afford to the Undertakers all reasonable facilities for temporarily carrying such mains pipes and works along the main road or across any stream or river so as not to interrupt the continuous supply of water or to diminish the pressure of such supply through such mains or pipes and the Undertakers may carry such mains and pipes accordingly and shall reimburse the county council all reasonable expenses incurred by the county council in affording such facilities:

- (9) All works shall be so executed by the Undertakers as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road or over any county or main road bridge and the Undertakers shall not open or break up at any one time a greater length than one hundred yards of any main road and shall leave an interval of at least one hundred yards between any **two** places at which they may open or break up such road;

(10) All costs charges and expenses payable by the Undertakers to the county council under the provisions of this section shall be recoverable as a debt due from the Undertakers to the county council : A.D. 1914.
Elham Valley.

(11) If any difference at any time arises between the county council and the Undertakers touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid to the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid.

19. The provisions of section 19 of the Order of 1904 shall extend and apply to any work done within the new limits as if the said provisions had been re-enacted in this Order. For protec-
tion of dis-
trict roads.

20. The provisions of section 20 of the Order of 1904 shall extend and apply to this Order as if the said provisions had been re-enacted in this Order. Power to
Undertakers
to sell under-
taking to local
authority.

21. Nothing in this Order contained authorises the Undertakers to enter upon use or interfere with any land soil or water or any right in respect thereof vested in or exercised or exerciseable by His Majesty's Principal Secretary of State for the War Department or to take away lessen abridge or alter any of the rights privileges or powers vested in or exercised or exerciseable by the said Principal Secretary of State for the War Department without his previous consent signified in writing under his hand which consent the said Principal Secretary of State for the War Department is hereby authorised to give subject to such special conditions as he shall see fit to impose on the Undertakers. For protec-
tion of War
Office.

22. The provisions of section 15 of the Order of 1904 shall be deemed to apply to any works constructed by the Undertakers under the authority of this Order and the exercise of the powers of this Order as if the said provisions were re-enacted in this Order. For protection of
South Eastern
Railway Com-
pany and South
Eastern and
Chatham Rail-
way Companies
Managing Com-
mittee.

23. The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Order or Act of Parliament. Limiting
powers of
Undertakers
to abstract
water.

Additional Capital.

24. Notwithstanding the limitation prescribed by section 7 of the Order of 1904 and section 4 of the Order of 1912 with respect to the Power to
raise addi-
tional capital.

A.D. 1914. share capital of the Undertakers for the purposes of their water
Elham Valley. undertaking the share capital of the Undertakers for the purposes of
the undertaking authorised by the Order of 1904 the Order of 1912
and this Order may consist of the share capital of seven thousand five
hundred pounds mentioned in the Order of 1904 and two thousand
pounds mentioned in the Order of 1912 and of further additional
share capital to be issued subject to the provisions of this Order not
exceeding ten thousand pounds (herein-after referred to as "the new
capital") including any premiums obtained on the sale of any shares
or stock under the provisions of this Order Provided that the share
capital of the Undertakers for the said purposes shall not exceed in
the whole the sum of nineteen thousand five hundred pounds unless
the Undertakers are hereafter authorised to raise further share capital
by Provisional Order under the Gas and Water Works Facilities Act
1870 or by Act of Parliament.

New capital
to be sold by
auction or
tender.

25.—(1) All shares or stock forming part of the new capital shall
be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by
public auction or tender in such manner at such times and subject to
such conditions of sale as the Undertakers shall by special resolution
determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the
clerk to the district council of every urban or rural district
within the limits of supply of the Undertakers and to the
secretary of the London Stock Exchange at least twenty-
eight days before the day of auction or the last day for the
reception of tenders as the case may be and shall also be
duly advertised once in each of two consecutive weeks in
one or more local newspapers circulating within the said
limits of supply:

(B) A reserve price which shall be not less than the nominal
value thereof shall be fixed and notice thereof shall be sent
by the directors of the Undertakers in a sealed letter to be
received by the Board of Trade not less than twenty-four
hours before but not to be opened till after the day of
auction or last day for the receipt of tenders as the case
may be:

(c) No lot offered for sale shall comprise shares or stock of greater
nominal value than one hundred pounds:

(d) In the case of a sale by tender no preference shall be given
to one of two or more persons tendering the same sum In
the case of a sale by auction a bid shall not be recognised
unless it is in advance of the last preceding bid:

(E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be. A.D. 1914.
Elham Valley.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of the ordinary and preference shares or stock of the Undertakers in manner prescribed by a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportion as the directors of the Undertakers may think fit or to one or more of these classes of persons only provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with the provisions of subsection (2) or of subsections (2) and (3) and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price not being less than the nominal value thereof and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock as the case may be.

26. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend. *Application of money.*

27. The amount of all moneys borrowed by the Undertakers and secured by mortgage of their undertaking shall not at any time exceed in the whole one-third of the amount of the capital of the Undertakers at the time actually raised by the issue of shares or stock including any premiums that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than five pounds per centum per annum shall be *Limit of borrowing powers.*

A.D. 1914. paid by the Undertakers without the consent of the Board of Trade
—
Elham Valley. in respect of any moneys borrowed by the Undertakers after the
commencement of this Order and secured as aforesaid.

Costs of
Order.

28. All the costs charges and expenses of and incident to the
applying for preparing obtaining and confirming this Order and other-
wise in relation thereto shall be paid by the Undertakers.

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